

Court No. - 21

Case :- WRIT - C No. - 10906 of 2023

Petitioner :- Dinesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Tej Om Prakash Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

In the past, the petitioner had approached this Court by filing Writ-C No. 7179 of 2023 challenging the demand notices dated 11.12.2019, 09.01.2020 and 11.01.2023 issued by the respondent-Electricity Department for recovery of electricity dues from the petitioner in a case of theft of electricity.

The main ground of challenge to the demand notices in the aforesaid writ petition was that the procedure prescribed under the U.P. Electricity Supply Code, 2005 had not been followed while making assessments and issuing demand notices. By order dated 01.03.2023, the aforesaid writ petition was disposed of as follows :-

"The petitioner has challenged the demand notices dated 11.12.2019, 9.1.2020 and 11.1.2023 issued by the respondent Electricity department for recovery of electricity dues in a case of theft of electricity.

Sri Baleshwar Chaturedi, learned counsel for the respondent-Electricity department submits that the impugned recovery has been withdrawn and that a fresh order will be passed after affording opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondent-electricity department to pass fresh order after following the procedure prescribed under the U.P. Electricity

Supply Code, 2005."

Once again, the petitioner is before this Court challenging the notice of demand received by him through SMS for a sum of Rs. 3,35,581/-.

The specific case of the petitioner is that he was not served with any notice nor provided with any opportunity of hearing before finalising the assessment.

Learned counsel for the respondent-Electricity Department has placed before us a notice dated 27.02.2023 and on the strength of the said notice, it is sought to be contended that the petitioner was given proper notice and opportunity of hearing. A perusal of the said notice reveals that thereby the petitioner was required to appear before respondent no. 2 on 15.03.2023 for personal hearing along with his written objections and evidence failing which, the provisional assessment would be treated to be final. The said notice was sent to the petitioner by registered post on 03.03.2023.

Under U.P. Electricity Supply Code, 2005, 15 days clear notice has to be given to the consumer for filing objection and personal hearing which does not seem to have been complied with in the instant case as the notice itself was sent by registered post on 03rd March, 2023.

In the past, the Managing Director of the concerned Discom had issued guidelines to the officers for strictly complying with the provisions of the U.P. Electricity Supply Code, 2005 while making assessments.

Repeated violation of the prescribed procedure is not acceptable and it seems that the concerned officer is totally oblivious of the misery of the consumer where proper procedure is not followed in making assessments compelling the person to approach this Court

again and again, resulting in wastage of time of the Court as well.

We direct the Managing Director of the concerned Discom to examine the entire aspect and take suitable action and disclose the same by filing his personal affidavit on or before the next date fixed.

List as fresh on 19.04.2023. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 4.4.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 10906 of 2023

Petitioner :- Dinesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Tej Om Prakash Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Baleshwar Chaturvedi, learned counsel for the respondent Electricity Department, states that an enquiry is in progress and that it will be concluded within three weeks and the outcome of the same will be brought on record before the next date.

Accordingly, the matter is adjourned for three weeks.

List as fresh on 10.5.2023.

Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.4.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 10906 of 2023

Petitioner :- Dinesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Tej Om Prakash Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The instant writ petition has been filed praying for quashing of the demand made by the respondents from the petitioner towards electricity dues through a SMS sent to his mobile number and for a mandamus restraining the respondents from taking any coercive action against the petitioner in pursuance of the said demand.

2. On 4.4.2023 we passed the following order: -

"In the past, the petitioner had approached this Court by filing Writ-C No. 7179 of 2023 challenging the demand notices dated 11.12.2019, 09.01.2020 and 11.01.2023 issued by the respondent-Electricity Department for recovery of electricity dues from the petitioner in a case of theft of electricity.

The main ground of challenge to the demand notices in the aforesaid writ petition was that the procedure prescribed under the U.P. Electricity Supply Code, 2005 had not been followed while making assessments and issuing demand notices. By order dated 01.03.2023, the aforesaid writ petition was disposed of as follows :-

"The petitioner has challenged the demand notices dated 11.12.2019, 9.1.2020 and 11.1.2023 issued by the respondent Electricity department for recovery of electricity dues in a case of theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel for the respondent-Electricity department submits that the impugned recovery has been withdrawn and that a fresh order will be passed after affording

opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondent-electricity department to pass fresh order after following the procedure prescribed under the U.P. Electricity Supply Code, 2005."

Once again, the petitioner is before this Court challenging the notice of demand received by him through SMS for a sum of Rs. 3,35,581/-.

The specific case of the petitioner is that he was not served with any notice nor provided with any opportunity of hearing before finalising the assessment.

Learned counsel for the respondent-Electricity Department has placed before us a notice dated 27.02.2023 and on the strength of the said notice, it is sought to be contended that the petitioner was given proper notice and opportunity of hearing. A perusal of the said notice reveals that thereby the petitioner was required to appear before respondent no. 2 on 15.03.2023 for personal hearing along with his written objections and evidence failing which, the provisional assessment would be treated to be final. The said notice was sent to the petitioner by registered post on 03.03.2023.

Under U.P. Electricity Supply Code, 2005, 15 days clear notice has to be given to the consumer for filing objection and personal hearing which does not seems to have been complied with in the instant case as the notice itself was sent by registered post on 03rd March, 2023.

In the past, the Managing Director of the concerned Discom had issued guidelines to the officers for strictly complying with the provisions of the U.P. Electricity Supply Code, 2005 while making assessments.

Repeated violation of the prescribed procedure is not acceptable and it seems that the concerned officer is totally oblivious of the misery of the consumer where proper procedure is not followed in making assessments compelling the person to approach this Court again and

again, resulting in wastage of time of the Court as well.

We direct the Managing Director of the concerned Discom to examine the entire aspect and take suitable action and disclose the same by filing his personal affidavit on or before the next date fixed.

List as fresh on 19.04.2023. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings."

3. In pursuance of the aforesaid order, the Managing Director, Dakshinanchal Vidyut Vitaran Nigam Limited, Agra has filed his affidavit in which it is stated that the petitioner was sent SMS for payment of Rs. 3,35,581/- till 13.3.2023, so as to avail certain discount.

4. Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent-Electricity Department, admits that till date the final assessment order has not been passed. Consequently, there was no occasion for the respondent-Electricity Department to raise any demand of arrears of electricity dues. The affidavit filed by the Managing Director also states that the concerned Executive Engineer is found not to have complied with the procedure prescribed under the U.P. Electricity Supply Code, 2005 and therefore he has been issued a warning by order dated 5.5.2023. It is also stated that all the officers have been informed that if they did not comply with the procedure prescribed under the U.P. Electricity Supply Code, 2005 and any cost or compensation is awarded by the Court against the Department, it will be recovered from the concerned officer.

5. Sri Baleshwar Chaturvedi, learned counsel for the respondent-Electricity Department, states that the order of final assessment will be passed after issuing fresh fifteen days clear notice to the petitioner.

6. Having regard to the aforesaid stand, we quash the demand made by the respondent-Electricity Department from the petitioner by sending SMS on his mobile phone. We leave it open to the respondents to finalize the assessment proceedings strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

7. As the petitioner has been put to unnecessary harassment on account of illegal action of the concerned Executive Engineer, therefore we impose a cost of Rs. 10,000/- on the respondent-Electricity Department to be paid to the petitioner within two weeks from today. It is left open to the Department to recover the said amount from the concerned officer.

8. As the petitioner's electricity supply was disconnected long back and the respondents have twice passed illegal orders and have not succeeded in finalizing the assessment proceedings so far, we direct the respondent-Electricity Department to restore the electricity supply to the petitioner's premises forthwith, subject to the final outcome of the assessment proceedings.

9. The petition stands allowed to the extent indicated above.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.5.2023

Jaideep/-